

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Terrance R. Duncan
Judge of the Superior Court
County of Monterey
240 Church Street
Salinas, CA 93901

Re: Robles, Javier Villegas
CDC No.: V94227
Case No.: SS051476A
Date of Sentence: August 11, 2005

Dear Honorable Terrance R. Duncan:

The purpose of this letter is to provide the court with authority to resentence Javier Villegas Robles pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Robles was sentenced in 2005, and was convicted of section 245, subdivision (a)(2), Assault With Firearm. The trial court sentenced inmate Robles on August 11, 2005. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Robles's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Robles's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Lydia M. Villarreal, Monterey County Presiding Judge
Monterey District Attorney
Public Defender

194227

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF MONTEREY			
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Javier Villegas Robles		DOB: 06-24-84	SS051476A -A-
AKA:			-B-
CII#: A20173850		☐ NOT PRESENT	-C-
BOOKING #: 504919			-D-
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☒ AMENDED ABSTRACT	
DATE OF HEARING 08-11-05	DEPT. NO. Courtroom 1	JUDGE Terrance R. Duncan	
CLERK Terry Vogl	REPORTER Jodi Hale 8638	PROBATION NO. OR PROBATION OFFICER Immediate Sentencing	
COUNSEL FOR PEOPLE Carol Reed		COUNSEL FOR DEFENDANT Steve Rease ☒ APPTD.	

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
____ (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Under 90 Days)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
4	PC	245(a)(2)	Assault with firearm	2005	08-11-05			X	U							4	0
6	PC	136.1(c)	Attempt to dissuade witness	2005	08-11-05			X	M		X					1	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
4	PC 12022.5(a)	3	PC 12022.7(a)	3	PC 186.22(b)(1)	10			16 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: 0 0

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 21 0

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

SS051476A

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$10000. per PC 1202.4(b) forthwith per PC 2085.5; \$10000. per PC 1202.45 suspended unless parole is revoked.
Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

(*List victim name(s) if known and amount breakdown in Item 11, below.)

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS
Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS
Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS
Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

d. Lab Fee and Drug Program Fee:

Case A: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case B: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case C: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case D: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).

10. TESTING

a. ☐ AIDS pursuant to PC 1202.1 b. ☒ DNA pursuant to PC 296 c. ☒ other (specify): Restitution

11. Other orders (specify):

Restitution to be determined and collected through the Department of Corrections

12. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
e. ☐ other (specify):

13. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	111	94	14 ☐ 4019 ☒ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
08-11-05		DMH CDC CRC	[] [X] []

14. The defendant is remanded to the custody of the sheriff, ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE Terry Vogl DATE 08-30-05